

Live Webinar



India to US Business Expansion

- ▶ Legal Structures
- ▶ FEMA Compliance
- ▶ Cross-Border Taxation



Manish Aggarwal
Founder | TrueLedge Consulting LLP

 11th June 2026 | Thursday
 5:00 PM – 6:00 PM | IST

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Background

Indian start-ups increasingly look to establish a presence in the United States to access global markets, serve US-based clients, attract international investors, and build scalable cross-border operations.

However, setting up a US business extends beyond overseas incorporation and requires careful navigation of interconnected legal, regulatory, tax, and compliance frameworks across both jurisdictions.

This Taxmann.com | Learning Webinar will provide participants with a practical understanding of the legal, FEMA, tax, and operational considerations involved in establishing and managing a US business from India.

It will cover key aspects such as selecting an appropriate business structure, routing investments through FEMA-compliant channels, managing cross-border tax exposures, maintaining parallel compliance and accounting frameworks, structuring ESOPs, and planning repatriation of profits, with a focus on practical implementation and regulatory implications.

Agenda

In Taxmann.com | Learning—Webinar, CA Manish Aggarwal will discuss:

Choosing the Right Legal Structure

- US Entity Structures for Indian Founders – Comparative Overview
- Choosing Between a C-Corp, LLC & Branch Structure
- Indian Parent Implications – Subsidiary vs Branch Under the Companies Act, 2013
- RBI Approval Requirements for Branch, Liaison & Project Offices

Funding the US Entity

- Transfer of Capital From India to the US
- FEMA & RBI Overseas Direct Investment (ODI) Framework
- Compliance Requirements for Overseas Investments
- Liberalised Remittance Scheme (LRS) for Founder-Level Remittances
- Transfer Pricing Implications on Intercompany Funding

Accounting & Financial Reporting

- US GAAP Fundamentals & Bookkeeping Framework
- Consolidation Requirements Under Ind AS & the Companies Act for the Indian Parent
- Statutory Audit Requirements & Parallel Books Maintenance

Tax Compliance – Federal, State & Cross-Border Obligations

- EIN Registration, Federal Filings, State Nexus & Sales Tax Compliance
- Permanent Establishment (PE) Risk Under the India-US DTAA
- Withholding Tax on Royalties, Management Fees & Technical Services (Article 12)
- Form 15CA/15CB Compliance for Outward Remittances

Agenda

In Taxmann.com | Learning—Webinar, CA Manish Aggarwal will discuss:

Transfer Pricing Considerations

- Intercompany Transactions Between the Indian Parent & US Subsidiary
- Indian Transfer Pricing Documentation – Form 3CEB, Master File & CbCR
- US Section 482 Arm's Length Standards
- Benchmarking Service Fees, IP Licensing & Cost-Sharing Arrangements

ESOP & Equity Structuring for India-Based Employees

- FEMA Compliance for Indian Employees Holding Foreign Securities
- Schedule FA Disclosure Requirements Under the Income-tax Return
- Perquisite Taxation at Exercise Under the Income-tax Act
- DTAA Relief for Double Taxation

Tax Incentives & Credits

- R&D Credits & State-Level Incentives in the US
- SEZ/STPI Benefits for the Indian Entity
- Repatriation of US Profits & Indian Tax Implications

Q&A Session

- Key Takeaways & Practical Insights
- Bilateral Compliance Checklist
- Live Questions & Answers

Interactive Live Session Relevant for



Chartered Accountants



Bankers



Startup Founders



Business Owners with Cross-border Investments

Speaker



Manish Aggarwal

Founder | TrueLedger Consulting LLP

Manish Aggarwal is a seasoned International Tax and Accounting professional with deep expertise in cross-border tax planning, expatriate taxation, and global mobility compliance. CA. Manish Aggarwal founded True Ledger Consulting LLP, where he provides specialised advisory services on US, Indian, UK, and Singapore tax laws. His clientele includes NRIs, businesses, and CPAs. With extensive experience in taxation, transfer pricing, and international tax structuring, CA. Manish Aggarwal has guided numerous clients through complex tax regulations, helping them optimise their financial strategies confidently and clearly.



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